

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 05/29/2026

ALL APPEARANCES WILL BE BY ZOOM.

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties

EMAIL THE DEPARTMENT at dept32@contracosta.courts.ca.gov to request argument and

SPECIFY THE ISSUES to be argued.

Counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her intention to appear and of the issues to be argued.

Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

CourtCall will **NOT** be used by D32.

Zoom is approved for all hearings except Issue Conferences and Trials.

Dept. 32's telephone number is: (925) 608-1132.

Dept. 32's email address is: dept32@contracosta.courts.ca.gov.

Submission of Orders After Hearing in Department 32 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/1613360625?pwd=pSvVmR75t9Q2H5zOgagi9rbG4xeTUM.1>

Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C23-01054
CASE NAME: SWEET ADELINE INC VS. TASTYWINGS INC
*HEARING ON MOTION IN RE: RECONSIDERATION
FILED BY: LEVY, CASSANDRA
TENTATIVE RULING:

Good cause appearing, the court **grants** the motion for reconsideration.

1. Pursuant to California Code of Civil Procedure (CCP) section 1008, this Court's Order for the December 26, 2025 hearing is hereby **RESCINDED** in its entirety.
2. Defendant TastyWings, Inc.'s monetary sanctions in the amount of \$4,942.50 per this Court's Order for the December 26, 2025 hearing is **VACATED** against Plaintiff in view of the circumstances set forth in Plaintiff's Motion For Reconsideration.
3. Relief from this Court's Order for the December 26, 2025 hearing is granted pursuant to CCP section 473(b) on the grounds of mistake, inadvertence, surprise, or excusable neglect, in the view of the circumstances set forth in Plaintiff's Motion For Reconsideration.
4. Plaintiff and Defendant, TastyWings, Inc. are hereby ordered to Meet and Confer to determine if, given Plaintiff's subsequent production of documents, there has been substantial compliance with Defendant's outstanding discovery requests. This Meet and Confer shall occur within 30 days of service of notice of entry of this Order.

2. 9:00 AM CASE NUMBER: C23-01788
CASE NAME: NEENA KADABA VS. ARASH HATAMBEIKI
*HEARING ON MOTION IN RE: STRIKE OR, IN THE ALTERNATIVE, TO TAX COSTS
FILED BY: KADABA, NEENA
TENTATIVE RULING:

The Plaintiffs' Motion to Strike or in the Alternative to Tax Costs is granted in part and denied in part.

As to Line 13, Models enlargements, and photocopies of exhibits: \$2,459.57, the motion is **denied**. The court finds that the three Ontellus invoices pertain to business records of parties retained by Plaintiffs for survey and other work related to the subject matter of the litigation. The Plaintiffs' objections are answered in the Defendant's pleadings and court finds the description of the costs to be appropriate.

As to Line 15, Mediation fees: \$5,400, the motion to strike is **granted**. These are not statutory fees. Merely because Plaintiffs requested mediation prior to the hearing on the Defendant's motion for summary judgment/adjudication